

LEGISLATURE OF THE STATE OF IDAHO
Sixty-eighth Legislature Second Regular Session - 2026

IN THE HOUSE OF REPRESENTATIVES

HOUSE BILL NO. 931

BY WAYS AND MEANS COMMITTEE

AN ACT

RELATING TO THE PORTABLE BENEFIT PLAN ACT; AMENDING SECTION 44-2802, IDAHO CODE, AS ADDED IN SECTION 1 OF HOUSE BILL NO. 645, IF ENACTED BY THE SECOND REGULAR SESSION OF THE SIXTY-EIGHTH IDAHO LEGISLATURE, TO REMOVE A DEFINITION; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Sections 44-2802, Idaho Code, as added in Section 1 of House Bill No. 645, if enacted by the Second Regular Session of the Sixty-eighth Idaho Legislature, be, and the same is hereby amended to read as follows:

44-2802. DEFINITIONS. For the purposes of this chapter:

(1) "Bank" means a state bank, national bank, credit union, out-of-state state-chartered bank, or foreign bank organized under the laws of a territory of the United States, the Commonwealth of Puerto Rico, Guam, American Samoa, the United States Virgin Islands, or Greenland with deposits insured by the federal deposit insurance corporation.

~~(2) "Department" means the Idaho department of insurance.~~

~~(3)~~ (2) "Hiring party" means a person or entity who hires or enters into a contract with an independent contractor.

~~(4)~~ (3) "Independent contractor" means any person who renders service for a specified recompense for a specified result, under the right to control or actual control of the independent contractor's principal as to the result of the independent contractor's work only and not as to the means by which such result is accomplished.

~~(5)~~ (4) "Portable benefit account" means an account owned by an independent contractor to fund the purchase of one (1) or more benefit plans.

~~(6)~~ (5) "Portable benefit account provider" means the administrator of a portable benefit account and includes:

(a) A bank;

(b) An investment management firm;

(c) A technology provider or program manager that offers services through a bank or investment management firm; or

(d) Any other person who demonstrates to the satisfaction of the department that the manner in which the person will administer the portable benefit account will be consistent with the portable benefit account requirements under this chapter.

~~(7)~~ (6) "Portable benefit plan" means a benefit plan:

(a) Administered by a third party benefit plan provider chosen by an independent contractor and assigned to a beneficiary rather than to a hiring party; and

(b) Includes but is not limited to:

(i) Disability insurance;

- 1 (ii) Health insurance;
- 2 (iii) Income replacement insurance;
- 3 (iv) Life insurance;
- 4 (v) Retirement benefits; or
- 5 (vi) Unemployment insurance.

6 SECTION 2. An emergency existing therefor, which emergency is hereby
7 declared to exist, this act shall be in full force and effect on and after
8 July 1, 2026.